

**THE
CONSTITUTION
OF
THE NIGERIAN INSTITUTE
OF
QUANTITY SURVEYORS**



**2004
SECOND AMENDMENT
MARCH, 2015**

THE CONSTITUTION OF THE NIGERIAN INSTITUTE OF QUANTITY SURVEYORS

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THE CONSTITUTION

THE CONSTITUTION OF THE NIGERIAN INSTITUTE OF QUANTITY SURVEYORS

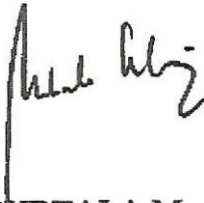
2004 CONSTITUTION OF THE NIGERIAN INSTITUTE OF QUANTITY SURVEYORS AS AMENDED ON 21ST MARCH 2015 (2ND AMENDMENT)

Following the consent judgment of Kaduna High Court on the 27th October, 2009, the 2004 Constitution of The Nigerian Institute of Quantity Surveyors was duly amended and adopted on 22nd October, 2011.

Considering the fact that a Constitution is a live document and upon implementation of the amended 2004 Constitution over a period, there arose further need to amend the Constitution.

Consequently, the 2004 Constitution as amended in 2011 was further unanimously amended on 21st March 2015 at Shehu Musa Yar'adua Center Abuja.

The 2004 Constitution as amended in 2011 is hereby further amended with effect from 21st March, 2015



MURTALA M. ALIYU, FNIQS

President,

NIGERIAN INSTITUTE OF QUANTITY SURVEYORS

21st March, 2015

1.0 THE INSTITUTE & CONSTITUTION

- 1.1 The Institute shall be known and called THE NIGERIAN INSTITUTE OF QUANTITY SURVEYORS
- 1.2 The Head Office of the Institute shall be situated in the Federal Capital Territory of Nigeria.
- 1.3 There shall be a Liaison Office in Lagos, Nigeria.
- 1.4 This Constitution is supreme and its provisions shall have binding force on the Institute, the various State Chapters and its Members.
- 1.5 The Nigerian Institute of Quantity Surveyors and its affairs shall not be administered except in accordance with the provisions of this constitution.
- 1.6 Subject to the Constitution of the Federal Republic of Nigeria and Laws enacted under its provisions, this constitution takes precedence over and above any other Constitution, Regulations, Bye-laws and Standing Orders of the Institute.

2.0 FUNDAMENTAL OBJECTIVES

The aims and objectives of the Institute shall be:

- i. To promote the art and science of the practice of the profession of Quantity Surveying in all its ramifications;
- ii. To provide a platform or forum for meeting and discussing matters of mutual interest to Quantity Surveyors in Nigeria, and to preserve and further the interest of Quantity Surveyors;
- iii. To promote and stimulate the improvement of the technical and general knowledge of persons engaged in the profession;
- iv. To organize continuing education and professional training for those seeking to become Registered Quantity Surveyors and assist and prepare its members to be registered by the Quantity Surveyors Registration Board of Nigeria (QSRBN);
- v. To undertake research, study and collate information from any Quantity Surveying bodies from any part of the world on the latest developments and technologies in the practice of the profession and to make such information available to its registered members;
- vi. To co-operate and collaborate with the Quantity Surveyors Registration Board of Nigeria in the training of Quantity Surveyors and the regulating and controlling the practice of the profession in Nigeria;
- vii. To disseminate information and promote understanding of the profession among members of the public and to co-operate with other professional bodies in Nigeria and elsewhere for the promotion and continuous improvement of professional practices and standards; viii. To ensure the maintenance of the highest standards of discipline and professional conduct;
- ix. To promote the interest of members through affiliation and membership of international professional associations;

- x. To enter into reciprocal arrangements with other national associations to assist international mobility of labor among members;
- xi. To enter into partnership with organizations in both the public and private sector in promoting the interest of members and the development of the profession of Quantity Surveying both in Nigeria and abroad;
- xii. To receive funds that may be donated or bequeathed to the Institute by, members, companies or organizations, to be expended as directed by the donor(s), provided the purpose and use are in accordance with the objects and provisions of this constitution; and
- xiii. To conduct the affairs of the Institute in a manner that encourages and gives a sense of belonging to all members of the profession through the application of Federal Character principles and such like contained in the constitution of the Federal Republic of Nigeria but subject to competency and high quality at all times.

3.0 MEMBERSHIP

3.1 Membership of the Institute shall be open:

- i. To persons registerable as Quantity Surveyors resident in Nigeria and abroad and who the National Executive Council considers as eligible upon the recommendation of the Membership Committee.
- ii. Any other person though not entitled to be a member in accordance with the foregoing, but has contributed immensely to the growth and development of the profession, who the National Executive Council considers eligible upon the recommendation of the Membership Committee.

3.2 All prospective members shall apply on the appropriate form in writing through the Secretary-General of the Institute to the Membership Committee, which shall make recommendations to the National Executive Council for approval.

3.3 Membership of the Institute shall consist of the following grades, which are defined in the Bye-laws of the Institute, contained elsewhere.

3.3.1 Corporate Members

- (i) Fellows
- (ii) Members

3.32 Honorary Fellows

3.3.3 Non Corporate Members

- (i) Probationers
- (ii) Technicians
- (iii) Students

3.3.4 Corporate Affiliate Members

3.4 Designations

3.4.1 The designatory letters which may be used by such members under the provisions of this constitution are set out as follows:

Fellow	FNIQS
Member	MNIQS
Honorary Fellow	Hon. FNIQS
Past Presidents may also use the designation	PP NIQS

3.5 Institute's Logo

- i. It shall be mandatory for a practicing member firm to use the Institute's Logo and indicate their practice number on Letter Heads, Name Plates, Cards, Brochures, and the like.
- ii. It shall be an offence for a Corporate Member to fail to conspicuously display or use the Institute's logo as specified in this constitution. Such a member shall be subject to disciplinary measures in accordance with the provisions of this constitution.

4.0 INSTITUTIONAL POLICY AND POLICY ORGAN

4.1 Establishment & Composition

4.1.1 There shall be a National Policy Committee (NPC) of the Institute which shall be the highest policy making organ of the Institute.

4.1.2 The National Policy Committee shall consist of the following, namely:

- 1) All Members of the National Executive Council
- 2) All Past Presidents
- 3) All Past Secretary-Generals
- 4) All State Chapter Chairmen
- 5) All Trustees
- 6) President of QSRBN
- 7) Registrar of the QSRBN
- 8) Chairperson of all Associations established by the Constitution/Institute
- 9) Chairperson(s) of all Fora/Divisions established by the Constitution/Institute
- 10) One (1 no.) Representative each (who is a Registered Quantity Surveyor Member of the Institute) from the following Establishments:
 - Federal Ministry of Lands, Housing and Urban Development
 - Federal Ministry of Works
 - Federal Capital Territory Administration
 - Educational Establishments or Parastatals (NUC, NBTE, etc)
 - National Assembly
 - National Planning Commission
 - The Armed Forces

- The Nigerian Police Force
- Customs, Prisons, and Immigration Services

11) Any other Registered Member of the Institute who for strategic reasons the President may invite to the Committee, such as a serving Governor, Legislator, Minister and other political appointees in Government

4.2 Meetings & Quorum

- The President of the Institute, shall be the Chairman of the National Policy Committee, and shall preside over the meetings of the committee.
- The National Policy Committee shall meet at least twice in a year, at such place as the National Executive Council may from time to time determine.
- The Quorum of the National Policy Committee shall be Eleven (11) members. Six (6) of whom shall be Non-National Executive Council Members.

4.3 The Functions/Duties

The functions and duties of the National Policy Committee shall be:

- Approving the broad policies and principles of the governance of the Institute;
- Approving the conferment of Honorary Fellowship to any person(s), upon the recommendation of the National Executive Council;
- Approving the decisions of the National Executive Council on Disciplinary matters; and
- Consider and approve the nomination, upon the recommendation of the National Executive Council (NEC), of a candidate to fill and/or perform the duties pertaining to a vacant office in NEC.

5.0 TRUSTEESHIP

5.1 Number and Tenure of Trustees

5.1.1 Trustees of the Institute for the purposes of the companies and Allied Matters Act, 1990 or any statutory amendment or re-enactment thereof shall be Seven (7) in number and shall be appointed by the NEC and ratified or otherwise at the next AGM of the Institute.

5.1.2 Such Trustees shall be known as the Incorporated Trustees of the Nigerian Institute of Quantity Surveyors.

5.1.3 Only Fellows of the Institute, who have been so for not less than a period of Fifteen (15) years shall be eligible for appointment as Trustees provided that:

- he/she is not less than Fifty (50) years old;
- he/she has been a financial member of the Institute for a minimum of Thirty (30) years without any break in membership;

- iii. he/she must have distinguished himself/herself as an exemplary member of the Institute and society; and iv. he/she must be of impeccable character.

5.2 Tenure of Office and Disqualification

A Trustee may hold office for a maximum tenure of Ten (10) years, and shall cease to hold office if:

- i. at the expiration of his/her Ten (10) year tenure.
- ii. he/she resigns his/her office.
- iii. he/she ceases to be a member of the Institute.
- iv. he/she is removed from office by majority vote of membership present at any AGM provided that notice of such a motion has been given to the Secretary-General for publication to members of the Institute at least Six (6) weeks before the relevant ACM.
- v. he/she vacates office by reason of death, incapacity or voluntary resignation.
- vi. he/she is declared officially bankrupt by a court of competent jurisdiction.
- vii. he/she is a person of unsound mind having so found by a court of competent jurisdiction.
- viii. he/she is found guilty of professional misconduct by a competent and appropriate Body.
- ix. he/she is convicted of criminal offence by a court of competent jurisdiction.
- x. he/she is a person disqualified from being a director of a company pursuant to the provisions of section 258 of the Companies and Allied Matters Act 1990 or any statutory amendment or re-enactment thereof.

5.3 Filling a Vacancy in the Number of Trustees

Upon a vacancy occurring in the number of Trustees during the currency of the office, the National Executive Council shall appoint another eligible qualified member to fill the vacancy, who shall hold office until the next Annual General Meeting of the Institute, when he shall be eligible for appointment at such meeting.

5.4 Agreements by Trustees and the Trusteeship Act

- i. The Trustees shall under the relevant Trusteeship Act and any other prevailing Laws in Nigeria, have perpetual succession and power to sue and be sued in such corporate name and shall hold or acquire, and by instrument under the common seal to convey, assign, demise any land or any interest therein belonging to or held for the benefit of the Institute.
- ii. All documents to be executed by the Trustees shall be signed by all but not less than Four (4) of them and sealed with the common seal for and on behalf of the Institute.
- iii. No property of the NIQS shall be sold, assigned, transferred, conveyed or otherwise disposed of by the Trustees, without the authority of the NEC and Members of the Institute at an AGM.

5.5 Safe keeping of Institute's Documents, Deeds, Agreements

All documents, deeds and other instruments of long term agreements and interests belonging to the Institute shall be preserved in a depository such as the Montgomery Vaults or any similar professional

security institution for safe keeping, with the mandate of least Five (5) signatories comprising:

The President, The Secretary-General, and Three (3) Trustees.

6.0 NATIONAL EXECUTIVE COUNCIL

6.1 Establishment and Composition

6.1.1 There shall be a National Executive Council (NEC) of the Institute.

6.1.2 The National Executive Council (NEC) of the Institute shall comprise the following:

1. President
2. Deputy President
3. Vice President
4. Secretary-General
5. Assistant Secretary-General
6. Treasurer
7. Secretary, Professional Development & Library
8. Secretary, Marketing and Corporate Affairs
9. Secretary, International Affairs
10. Two chapter Chairmen from each of the Six (6) geopolitical zones of the country as stated in the bye-laws, provided that where the President or Deputy President is from any particular Chapter, another Chapter Chairman shall not be elected from such a Chapter for the ensuing term
11. The Chairman from Lagos chapter, for its number of membership, and the Chairman of FCT Chapter as the seat of Government
12. The Chairperson of WAQSN (Women Association of Quantity Surveyors of Nigeria)

6.2 Officers and Qualifications for Membership of National Executive Council

6.2.1 There shall be elected officers of the National Executive Council.

6.2.2 The officers of the Institute to be elected at the Election General meeting of the Institute shall be namely:

1. Deputy President
2. Vice President
3. Secretary-General
4. Assistant Secretary-General
5. Treasurer
6. Secretary Professional Development and Library
7. Secretary Marketing and Corporate Affairs
8. Secretary International Affairs

62.3 The Deputy President of the previous National Executive Council shall automatically assume the office of the President of the Institute on the expiration of the Two (2) year term of the current President of the Institute. The out-going President automatically becomes a Past President.

62.4 A Past President of the Institute shall be ineligible to contest election into any office of the National Executive Council.

62.5 Only Corporate Members shall be eligible to contest for election into the National Executive Council provided that only:

- i. Fellows, with not less than Fifteen (15) years post MNIQS qualification, who must have served the institute in NEC for a minimum of Two (2) terms as elected member, or one term as elected member in addition to being a previous Chairman of a Chapter or a National Body/Committee, or has served the institute as Vice President shall be eligible to contest for the office of the Deputy President.
- ii. Fellows, with not less than Twelve (12) years post MNIQS qualification, who must have served the institute in NEC for a minimum of One (1) term as elected member, or served as Chairman of a Chapter, or has served in a National Body/Committee for at least Six years, shall be eligible to contest for the office of the Vice President.
- iii. Save for 62.5 (i-ii) above (Deputy President & Vice President), Members with not less than Five (5) years post MNIQS qualification and election, who must have served in a National Body/Committee, or the Executive Committee of a chapter, shall be eligible to contest for office in the NEC.
- iv. In all cases, Members contesting for elective positions in the NEC shall each be duly registered as members of a Chapter; and must have attended and or participated in at least 60% of the activities of a committee and/ or chapter in any given 12 months.

6.3 Powers and Duties of the National Executive Council

The National Executive Council shall be the highest executive authority of the Institute with regards to the day to day administration and shall be the principal agency of the Institute for the purpose of carrying out its programmes and policies.

The National Executive Council shall have the following powers, functions, and duties:

6.3.1 To exercise control and management over the finances of the Institute;

- i. To exercise the powers of the Institute with regard to the appointment of members of the Institute into the Quantity Surveyors Registration Board of Nigeria or any other statutory bodies;
- ii. To make all necessary arrangements for the Annual General Meeting or for any other meeting of the Institute;
- iii. To appoint any suitable banker(s) for the Institute;
- iv. To recommend to the Annual General Meeting, auditing firm or firms to audit the accounts of the Institute;
- v. To appoint a suitable solicitor for the Institute;

vi. To appoint members of the Biennial General Meeting (BGM) Committee in accordance with the provisions of this Constitution; and vii. To maintain a group insurance scheme for the benefit of members.

6.4 Meeting(s) of the National Executive Council

4.1 The National Executive Council shall meet regularly (but not less than Four (4) times in a year) as planned at such times and places as specified by the Secretary-General at the direction of the President.

6.42 The President shall preside over the meetings of the National Executive Council and shall have a casting vote.

The quorum of the National Executive Council meetings shall be Nine (9) members, provided that a presiding officer is present.

6.5 Duties of Officers

6.5.1 PRESIDENT

The Duties of the President are:

1. To deliver an address at the First Annual General Meeting following his assumption of office;
2. To preside at all meetings of the Institute and he shall have a casting vote, except at a Special Emergency General Meeting;
3. To cause the summoning of all meetings of the Institute in accordance with the provisions of this Constitution;
4. To direct all other officers of the Institute in the performance of their duties;
5. He shall present an Annual Budget for approval at Annual General Meeting and/or BGM; and
6. He shall be the recognized spokesperson of the Institute.

In discharging any of the above responsibilities, he may seek the advice or input of any of the National Bodies established by this Constitution, except that any input or advice rendered by the Committee shall be in accordance with the provisions of this Constitution.

6.5.2 DEPUTY PRESIDENT

The duties of the Deputy President are:

1. He shall preside in the absence of the President at all meetings in which the President by virtue of this Constitution has powers to preside;
2. He shall be the Chairman of the Membership Committee;
3. He shall be the Chairman of the Biennial General Meeting (BGM) Committee and Biennial Election General Meeting (BEGM) Committee with responsibility for the organization and general arrangement of the Biennial Conference/General meeting including the technical programmes of the Conference; and

4. In the event of the President not being able to perform his duties by reason of ill health, or death, or other unforeseen circumstances, then the Deputy President shall, without prejudice to his other rights in this Constitution, act as the President and serve out the remainder of the term of the President.

6.5.3 VICE PRESIDENT

The duties of the Vice President are:

1. He shall preside at all meetings in the absence of the President and Deputy President;
2. He shall be the Chairman of the Education and Training Committee; and
3. He shall perform any other duties which the NEC, NPC, General Meeting may assign to him.

6.5.4 SECRETARY-GENERAL

The duties of the Secretary General, who shall oversee and co-ordinate activities of the Institute Secretariat, shall include the following:

1. He shall summon all meetings of the Institute on the instruction of the President;
2. Recording & keeping of minutes of all meetings of NEC and any other meeting of which he is Secretary;
3. Writing and dispatching external circulars, letters, and other correspondences of the Institute or the National Executive Council or National Policy Committee via, faxes, e-mails, and other approved modes of communication;
4. Furnishing and presenting an Annual or Special Report of the activities of the Institute or of any of its organs at the Annual General Meeting;
5. To co-ordinate the activities of the State Chapters; and
6. Performing any other duties that may be assigned to him by the National Executive Council, or The National Policy Committee, or the Management Committee or the Annual General Meeting.

6.5.5 ASSISTANT SECRETARY-GENERAL

The duties of the Assistant Secretary-General are:

1. To assist the Secretary-General in the discharge of his duties;
2. He shall directly assist the Secretary-General in the co-ordination of the State Chapters; and
3. He shall perform the duties of the Secretary-General in his absence.

6.5.6 TREASURER

The duties of the Treasurer shall be as follows:

1. He shall be accountable for the Institute's finance;
2. He shall manage the collection and payment into the Institute's bank accounts, all monies collected for the Institute or paid to the Institute by any body;

3. He shall carry out any decision or directive of the Annual General Meeting and National Executive Council in matters of the budget or finance of the Institute;
4. He shall be the Chairman of the Finance Committee;
5. He shall prepare the Annual Budget as directed by the National Executive Council;
6. He shall prepare and present an Annual Financial Report at all General Meetings; and
7. He shall prepare and circulate to every financial member of the Institute before the Annual General meeting and the BGM, the Audited Balance Sheet and such Annual statement of Account at least Fourteen (14) days before the meeting. Provided that circulation as contained under Clause 1.4 (iii) of the First Schedule of this Constitution shall be deemed in compliance with the requirements of this clause.

6.5.7 SECRETARY - PROFESSIONAL DEVELOPMENT AND LIBRARY

The duties of the Secretary - Professional Development are:

1. He shall be responsible for all matters relating to research, seminars, workshops, library administration and mandatory continuous professional development;
2. He shall be the Chairman of the Professional Development Committee;
3. He shall be responsible for the collection and analysis of data on advancement in the profession, storage and retrieval of such data when required by the NEC;
4. He shall conduct and carry out research towards improving the reservoir of knowledge and levels of skill of professional practice in the profession, including liaising with Quantity Surveying bodies world-wide and sister professional bodies in Nigeria, with a view to keeping the Institute and its members abreast of developments in the profession worldwide;
5. He shall make available, results of research and brief the National Executive Council from time to time, developments in the field of Quantity Surveying; and
6. He shall carry out other duties that may from time to time be assigned to him by the President or the National Executive Council.

6.5.8 SECRETARY - MARKETING AND CORPORATE AFFAIRS

1. He shall develop, implement and monitor the operations of Marketing and Public Relations programme in accordance with the Institute's strategic objectives;
2. He shall be the Chairman of Marketing and Corporate Affairs;
3. He shall provide appropriate direction for the editorial content of all the publications of the Institute with the exception of the Journal; and
4. He shall source for adverts from corporate bodies and individuals for all the Institute's publications.

6.5.9 SECRETARY - INTERNATIONAL AFFAIRS

1. He shall develop appropriate policies and programmes for maintaining and promoting close contact with sub-regional, regional and international organizations for the mutual benefit of the Institute and of these organizations;

2. He shall be the Chairman of International Affairs Committee; and
3. He shall foster cooperation with other professional organizations in addressing issues and concerns of common interest and mutual benefit through exchange of information and co-sponsoring professional activities/meetings.

6.6 Disqualification of Members of the National Executive Council and/or National Policy Committee

The office of a Member of the National Executive Council and or National Policy Committee shall be vacant if the occupant:

- i. Ceases to be a member of the Institute; ii. By notice in writing to the Institute, he resigns; iii. Ceases to hold office by virtue of any provisions of this Constitution; iv. Has his name struck off the register of the Institute;

Is declared bankrupt by a court of competent jurisdiction;

- vi. Is found to be lunatic or has become of unsound mind;
- vii. A Council Member abandons his responsibility under the provisions of this constitution, or without good reason fails to attend over 60% of council meetings in any given Twelve (12) months;
- viii. A Council Member breaches a fundamental term of the Institute's Code of Conduct;
- ix. A Council Member significantly breaches the provisions of the duties of the Council Member as provided in this Constitution.

6.6.1 Removal of Members from the National Executive Council

- i. Where the events listed in section 6.6 (i) to (vi) occurs, a disqualification notice shall be forwarded to the Council Member concerned after approval by the Council.
- ii. Where one or more of the events leading to disqualification as contained in Sections 6.6 (vii) to (ix) of this constitution is deemed to have been committed by any Council Member, excluding the President, a query shall be issued to the Council Member to explain or defend his actions in his violation of the constitution, and where the response is considered unsatisfactory, his disqualification and expulsion from council shall be confirmed.

6.6.2 Removal of The President

Where one or more of the events leading to disqualification as contained in Sections 6.6 (vii) to (ix) of this constitution is deemed to have been committed by the President or where there is an allegation of conduct injurious to the character or interest of the institute, including incurring deficit expenditures outside the provision of this constitution, a petition endorsed by not less than Sixty (60) members from at least Seven (7) different chapters shall be forwarded to the Secretary- General who shall forward such petition to the ADR committee and the Committee shall deliberate on the petition and prepare a report. On the advice of the ADR committee, the Secretary General shall convene a Special Emergency General Meeting (SEGM) to deliberate on the report of the ADR, not later than Four (4) weeks from the date of receipt of the ADR report. The President shall have an opportunity to respond to the petition at the

SEGM meeting. The meeting shall be presided over by a member of the ADR Committee, duly elected on the floor of the SEGM and the resolution of the SEGM meeting shall be final.

6.7 Establishment of National Bodies

There shall be established for the Institute, the following National Bodies, namely:

1. Management Committee of which the President shall be the Chairman.
2. Membership Committee of which the Deputy President shall be the Chairman.
3. Education and Training Committee of which the Vice President shall be the Chairman.
4. Finance Committee of which the Treasurer shall be Chairman.
5. Professional Development and Technical Committee of which the Secretary, Professional Development and Library shall be the Chairman.
6. Marketing and Corporate Affairs Committee, of which the Secretary-Marketing and Corporate Affairs shall be the Chairman.
7. International Affairs Committee of which the Secretary-International Affairs shall be the Chairman.
8. Ethics and Practice Monitoring Committee of which a Past President shall be the Chairman.
9. Examinations and Certification Board of which the Chief Examiner shall be the Chairman.
10. Editorial Board of which the Chief Editor shall be the Chairman.
11. Disciplinary Board of which Chairman who shall be a Past President shall be appointed by the National Executive Council.
12. Committee of Past Presidents, comprising all Past Presidents, they shall elect a Chairman and a Secretary from among themselves.
13. ADR (Alternative Dispute Resolution) Committee comprising of: 3 Trustees; 2 Past Presidents, excluding Chairmen of Committees/Board; Two (2) members from the Fellows Forum; One (1) non-Member of the Institute to be nominated by the NEC. They shall elect a Chairman and a Secretary from among themselves.
14. Fellows Forum, of which Chairman and other officers shall be appointed in accordance with their bye-laws.
15. Young Quantity Surveyors Forum, of which Chairman shall be appointed by the National Executive Council.
16. Women Association of Quantity Surveyors in Nigeria of which Chairperson shall be appointed in accordance with their bye-laws.
17. Association of QS (Quantity Surveyors) Lecturers/Educators, of which Chairperson and other officers shall be appointed in accordance with their bye-laws.
18. Association of Consulting Quantity Surveyors of which Chairperson and other officers shall be appointed in accordance with their bye-laws.
19. Association of Quantity Surveyors in Public Service of which Chairperson and other officers shall be appointed in accordance with their bye-laws.

20. Association of Quantity Surveyors in Contracting Organizations of which Chairperson and other officers shall be appointed in accordance with their bye-laws.

6.8 Composition and Powers of National Bodies

- i. Save for the Committee of Past Presidents, the ADR Committee, the Women Association of Quantity Surveyors, Association(s) of QS Lecturers/Educators, Consulting Quantity Surveyors, Quantity Surveyors in Public Service, Quantity Surveyors in Contracting Organizations, and Fellows Forum as provided in this Constitution, all appointments into the National Bodies shall be made by the National Executive Council.
- ii. The composition and powers of each body established by Sub-Article 6.7 are as contained in the respective bye-laws of the Institute. The policies, guidelines, rules and regulations for each body are as prepared by the bodies in line with the development strategy of the Institute and approved by the National Executive Council upon ratification of the National Policy Committee. The said policies, guidelines, rules and regulations shall be reviewable every Five (5) years.
- iii. The National Executive Council and the General Meeting shall have the powers to establish any ad-hoc committee, or body as they deem fit in fulfillment of the objectives of this Constitution.
- iv. In exercising the powers conferred on them by this Constitution, all Bodies and/or Ad-Hoc Committees shall operate within the bye-laws of the Institute, their bye-laws and other regulations approved by the National Executive Council.
- v. Any National body and/or ad hoc committee, subject to the approval of the NEC, could co-opt any member(s) whose services it requires for a particular function.
- vi. No recommendation of the Committee of the Institute shall be binding unless and until approved by the National Executive Council.

7.0 GENERAL MANAGEMENT AND ADMINISTRATION

7.1 National Secretariat

7.1.1 There shall be a National Secretariat for the Institute.

7.1.2 The National Secretariat shall be responsible for the entire management and general administration and co-ordination of the Institute within the given policy framework enumerated by the National Executive Council and under the direction of the Council.

7.2 Staff of the National Secretariat

The National Secretariat shall comprise an Executive Secretary, Deputy Executive Secretary/Secretaries and other employees as may be employed by the National Executive Council from time to time.

7.2.1 Executive Secretary

- a. The Executive Secretary shall be the Chief Operating Officer of the Secretariat and shall be appointed for a fixed tenure of Four (4) years per term with an option of renewal, but shall not be appointed for more than Two (2) consecutive terms in office.

- b. The Executive Secretary's qualification(s), salary, terms and conditions of appointment shall be as determined by the National Executive Council from time to time.

The Duties of the Executive Secretary shall include:

1. Responsible for the day-to-day management and general administration and coordination of the Institute's Secretariat;
2. Coordinating the activities of the Deputy Executive Secretary/Secretaries and directing all staff of the Institute in the performance of their duties;
3. Preparing and presenting periodic reports on the state of affairs of the Institute's Secretariat to the Management Committee and/or the National Executive Council;
4. He shall be a non-voting member of the Management Committee, the Biennial General Meeting (BGM) Committee and all other committees of the Institute, to which he may be specifically appointed;
5. Carrying out other such duties as the President, or the National Executive Council may from time to time assign to him; and
6. The Executive Secretary shall be in attendance at the National Executive Council at the discretion of the President.

72.2 Deputy Executive Secretary/Secretaries

- a. There shall be Deputy Executive Secretaries for key departments of the institute. The number, qualification, salary, terms and conditions of their appointment shall from time to time be determined by the National Executive Council.

The duties of the Deputy Executive Secretary/Secretaries shall include:

1. Assisting the Executive Secretary in the day to day execution of his duties; and
2. Carrying out the duties of the Executive Secretary in his absence and on approval by the National Executive Council.

72.3 Other Employees

The National Executive Council shall appoint for the Secretariat, such officers and other employees as it may deem fit and necessary from time to time.

7.3 Management Committee

7.3.1 The Management Committee shall comprise of the following members:

1. The President who shall be the Chairman
2. The Deputy President
3. The Vice President
4. The Secretary General
5. The Treasurer

6. The Executive Secretary

Duties of the Management Committee

The Management Committee shall have powers to perform functions delegated to it from time to time by the National Executive Council with regards to the administration of the Institute's programmes and policies.

8.0 CHAPTERS

8.1 Formation of State Chapters

8.1.1 There shall be Chapters of the Institute created in accordance with the provisions of this Constitution in all the States of the Federation, including the Federal Capital Territory,

8.1.2 A Chapter shall consist of at least 15 (Fifteen) Registered Quantity Surveyors, not later Three (3) years after its inauguration.

8.1.3 (i) Membership of a Chapter shall be open to those members of the Institute who are resident in the area of the Chapter.

(ii) Every member of the Institute shall belong to the Chapter in the area where he resides.

8.1.4 (i) An application to form a Chapter shall be signed by (10) Ten qualified members resident in the proposed Chapter and submitted to the Secretary-General.

(ii) It is the prerogative of the National Executive Council to approve or reject the application of any prospective Chapter.

8.2 Functions of Chapters

- 1) Each chapter shall submit a Register of its members, containing the names and addresses of each member of the Chapter to the NEC.
- 2) Such a Register shall be updated from time to time so as to ensure an accurate record of the financial members of the Chapter. It shall be the responsibility of the NEC Member representing the Chapter/Zone to liaise with the Chapter secretary for the update of Register.
- 3) Every Chapter shall forward a programme indicating its itinerary for the incoming year not later than Six (6) weeks of its election to the National Executive Council, every year, not later than the last quarter of the preceding year.
- 4) Ditto records of its activities every year, not later than the last quarter of the preceding year.
- 5) Every Chapter shall conduct their general meetings at least once in Three (3) months.
- 6) Every Chapter of the Institute shall carry out the directive(s) and or resolutions of the Annual General Meeting and/or National Executive Council of the Institute.
- 7) Every Chapter shall each hold an Annual General Meeting.
- 8) Every Chapter shall make a return of its officers to the National Executive Council.

9) Every Chapter shall have a Chairman, Deputy Chairman/Chairman Elect, General- Secretary, Treasurer, Financial Secretary, and Public Relations Officer and such other officers as may be deemed necessary.

8.3 Chapter Bye-Laws

The NEC shall provide suitable guidelines for the formulation of chapter Bye laws.

8.4 Collection of Revenue for NEC

- i. Chapters shall have powers to collect on behalf of the National Executive, the Annual Membership Subscription and other dues of members in their areas of jurisdiction.
- ii. All monies so collected and relevant details shall be remitted to the National Executive Council on a regular basis (once a month) after collection not less than One week after collection. Chapters shall be entitled to a commission on such monies collected.
Failure to remit funds as specified shall attract a query from the NEC, and a sanction shall be applied on the Chapter if the response to the query is deemed to be unsatisfactory.
- iii. The commission on such monies collected on behalf of the National Executive Council shall be Fifteen percent (15%).

8.5 Abolition of Chapters

The National Executive Council may withdraw the recognition of any Chapter when:

- i. The number of members shall fall below the minimum of Fifteen (15) qualified members.
- ii. A Chapter fails to carry out its duties over a long period of time.
- iii. Consequent upon the withdrawal of the recognition of a Chapter, the National Executive Council shall be obliged to merge it with another Chapter.

9.0 FINANCE

9.1 Power and Control over Funds

Administration of Institute's funds

The funds of the Institute shall be administered as follows:

- i. All monies belonging to the Institute shall be kept in its name with such bankers as the National Executive Council shall appoint.
- ii. The signatories to the Institute's accounts shall be: the President, the Deputy President, the Secretary General and the Treasurer.
- iii. All cheques drawn on the Institute's account shall be signed by the Treasurer, the President and one other signatory.
- iv. No expenditure shall be incurred for any purpose, unless the National Executive in its annual

budget or under any supplementary budget has approved such expenditure generally or unless the National Executive Council has specifically given prior approval to such expenditure. Provided that in any case of urgency, the President in consultation with the Deputy President, may seek approval from the Management Committee, prior to National Executive Council's final approval.

- v. The Secretariat may hold petty cash; of which amount shall be determined by the National Executive Council.

9.2 Investment of Institute's funds

The National Executive Council may invest the funds of the Institute in Government and other gilt-edged securities or such other securities as may be approved by the General Meeting.

9.3 Budget Implementation

Every approved annual budget shall be balanced with a surplus. A deficit budget may be approved provided details of the critical reason for the deficit, the source of the loans to finance the deficit and plans for full repayment during the tenure of the Council are provided. No deficit in excess of Five (5) percent of the total projected income shall be approved. Revenue yielding events and items such as fee paying workshops and seminars, publications, investiture, etc, expenditures of which can be fully recouped in a short time may be executed by council even if not captured in the budget.

10.0 INCOME

10.1 Membership and Annual Subscription

- i. The National Executive Council shall from time to time stipulate the enrolment fee payable by applicants for membership of the Institute as well as annual membership renewal subscription. ii. All monies due shall be paid to the Institute through the National Secretariat.

10.2 Fees and Other Payments by Applicants

102.1 All intending applicants shall pay in advance, an approved entrance fee with their application.

102.2 The annual membership subscription for an applicant shall become due within One (1) month of being notified of his election.

102.3 In the event of default of payment of such subscription within the stipulated period of One (1) month, his election shall become null and void.

102.4 A refund of his entrance fees less Fifteen percent (15%) processing fee would be made by the Institute within One (1) month of expiration of the default.

102.5 A refund of his entrance fees less Ten percent (10%) processing fee would be made by the Institute within One (1) month to candidates whose applications are rejected by the Membership Committee.

10.3 Fees by Members

10.3.1 The annual membership renewal subscription of an existing member shall become due on the First day of January of each year.

10.3.2 Any existing member who fails to pay the annual membership renewal subscription by the last day of March of the year, after due notification shall have his membership status suspended provided such notification shall include 3 (Three) reminders by written mail.

10.4 Erasure and Reinstatement of fees defaulting Members

10.4.1 The National Executive Council shall have the authority to erase the name of a defaulting member from the membership of the Institute and its Register and declare that he is no longer a member of the. Institute and demand the surrender of his Diploma Certificate.

10.42 If the National Executive Council exercises the above authority, the member concerned shall be notified forthwith.

Notwithstanding the above, the National Executive Council may in general or any particular case where it deems it fit defer exercising the authority described above until such a late date as the National Executive Council may determine subject to the ratification of the National Executive Council.

10.4.4 The National Executive Council shall have the authority to reinstate as Registered Member, any member whose name has been removed from the register provided all criteria are met.

10.5 Fees Rebate for Members over 65 years old

A member who has attained the age of 65 (Sixty-Five years) is entitled to a 50% rebate in his annual membership subscription and such shall be so effected in the demand notice for payment of subscriptions by the Treasurer accordingly. Provided that such member is financially up to date as at his 64th birthday.

10.6 Levies and Donations

10.6.1 The National Executive Council shall have authority to raise a general levy in all matters affecting the administration of the Institute as and when occasion demands, such levies shall be subject to the approval of the Annual General Meeting.

10.62 The National Executive Council shall welcome and receive voluntary donations and grants from any legitimate quarters for the benefit of the Institute.

11.0 AUDIT

11.1 There shall be for the Institute, Auditor(s).

11.2 External Auditors

11.2.1 The Institute shall employ the services of an External Auditors who shall be Chartered Accountants.

11.2.2 They shall be appointed at an Annual-General Meeting on the recommendation of the National Executive Council. Such auditors shall audit the books of the Institute at least once a year and submit to the Institute's Annual General Meeting a report thereon showing:

- i. Any fault or irregularities of whatever nature that may be discovered;
- ii. Comment on any system used in keeping the books or employed in the financial administration of the Institute's; and
- iii. Any suggestions for improvement of the Institute's financial administration.

11.3 Internal Auditors

Notwithstanding the provision for the appointment of External Auditor(s), the Annual General Meeting or the National Executive Council may at any time appoint Internal Auditors from qualified members of the Institute to investigate or audit any books of account of the Institute.

- i. The Internal Auditors shall comprise Three (3) members of the Institute of not less than 7 (Seven) years post-MNIQS qualification and election.
- ii. The Internal Auditors shall have the powers to call for any document which in their opinion will assist them in carrying out their duties or order any management staff, officer or other employees or registered member of the Institute to appear before them to explain, clarify or answer any question and/or to produce any document that the Internal Auditors may require.
- lii. The report of the Internal Auditors shall include its recommendation and signed by all the Auditors or at least Two (2) auditors; and it shall be submitted to the National Executive Council within Three (3) months of its commencement.

12.0 MEETINGS

12.1 Annual General Meeting

There shall be an Annual General Meeting of the Institute consisting of all members at a place to be decided by the National Executive Council and it shall hold during the last quarter of every year.

12.2 Biennial General Meeting (BGM)

- i. There shall be a Biennial General Meeting of the Institute consisting of all members during the last quarter of every two (2) years.
- ii. The venue of the Biennial General Meeting (BGM) shall be as decided by the National Executive Council.

12.3 Biennial Election General Meeting (BEGM)

- i. The Biennial Election General Meeting of the Institute, consisting of all Corporate Financial Members of the Institute to elect new officers into the National Executive Council shall hold at the same venue as the BGM under the coordination of the Biennial Election Panel.
- ii. The Biennial Election General Meeting shall hold after the adjournment of the Biennial General Meeting.

12.4 Emergency Meeting (EM)

- i. There shall be an Emergency General Meeting (ECM) of the Institute consisting all members either at the initiative of the President or in accordance with the decision of the National Executive Council or at the written request of at least Forty (40) qualified members from at least Four (4) State Chapters Notice of such summoned Emergency General Meeting must contain a statement of the object.
- ii. There shall be an Emergency National Executive Council Meeting of the Institute, either at the initiative of the President or in accordance with the decision of the National Executive Council or at the written requisition of at least Ten (10) members of the National Executive Council. Notice of such summoned Emergency National Executive Council Meeting must contain a statement of its objective.

12.5 Conduct of Meetings

All meetings of the Institute shall be conducted in accordance with the provision of the Standing Orders contained in the Second Schedule of this Constitution.

13.0 GENERAL SUPPLEMENTARY PROVISIONS

13.1 Representation in QSRBN

The Institute shall be represented on the Quantity Surveyors Registration Board of Nigeria by the following Five (5) members:

1. Deputy President
2. Vice President
3. Three (3) Registered Members with not less than Ten (10) years post MNIQS election appointed by the National Executive Council.

13.2 Administration of Justice

132.1 The discipline of a member of the Institute shall be the responsibility of the National Executive Council, based on the latest edition of the Rules of Conduct and Disciplinary Procedure of the Institute.

13.22 The Disciplinary Board shall inquire into the conduct of such member and make appropriate recommendation to the National Executive Council for ratification.

132.3 Members shall have a right of appeal to the Alternative Dispute Resolution Committee (ADR), against the disciplinary decision of the National Executive Council.

13.3 Amendments of the Constitution

This Constitution may be amended or altered at an Extra-Ordinary General Meeting of the Institute convened for that purpose and the procedure for such an amendment shall be as follows:

i. A proposal for the amendment or alteration of this constitution which shall contain the object and be supported by at least Fifty (50) signatories of financially qualified members from at least Four (4) State Chapters must be sent to the Secretary-General;

11. The Secretary-General shall send such proposal on receipt by the Secretariat to all Chapters of the Institute not later than Two (2) weeks from the date of receipt of proposal; iii. Each Chapter shall deliberate and vote on the proposal and return details of same to the Secretary-General within Six (6) weeks; iv. The Secretary-General shall put the decisions of the Chapters before the National Executive Council for their collation within a period not exceeding Four (4) weeks;

v. The collated report of the National Executive Council shall be tabled before an Extra-Ordinary General Meeting convened for that purpose within a period which shall not exceed Three (3) calendar months after process outlined in article 13.3; and

VI. The relevant sections(s) of this Constitution shall be duly amended or altered if supported by two-third majority of the total votes cast.

14.0 INTERPRETATION, CITATION AND COMMENCEMENT

14.1 Interpretation

In this Constitution, unless the context otherwise so stipulates the following expressions shall have the meanings respectively assigned to them.

- i. "The Institute" means the Nigerian Institute of Quantity Surveyors.
- ii. "The National Executive Council" means the National Executive Council of the Institute in office for the time being.
- iii. "Meeting" means, Annual General Meeting, Extra-ordinary/Emergency General Meeting, Biennial General Meeting, Election General Meeting, National Executive Council Meeting, Committee/Forum/Board Meeting and Emergency Meeting of the Institute.
- iv. "The Constitution" means the Constitution of the Nigerian Institute of Quantity Surveyors - "Bye-laws" mean the bye-laws and other regulations of the institute as approved by the National Policy Committee.
- vi. "Standing Orders" mean, the Standing Orders contained in the Second Schedule of the Constitution of the Nigerian Institute of Quantity Surveyors.
- vii. "Member" means, an individual who is a Fellow, Member, Honorary Fellow, Probationer, Technician, Student, Practicing Firm and Corporate Affiliate Members of the Institute.
- viii. "The Quantity Surveyors Registration Board of Nigeria" (QSRBN) means the Board established by Act No. 31 of 1986 Cap 383 Laws of the Federation of Nigeria 1990 and any subsequent amendments.

"Registered Quantity Surveyor" means, any person registered as such under the Act No- 31 of 1986 Cap 383 Laws of the Federation of Nigeria 1990 and any subsequent amendments.
- x. "Corporate Member" means, full individual members of the Nigerian Institute of Quantity Surveyors, namely Fellows and Members.
- xi. "Fellow" means a Fellow of the Institute duly upgraded as provided for in the Constitution and the institute Membership Guide/Byelaws.
- xii. "Member" means, a full member of the Institute duly elected as provided for in the Constitution and the institute Membership Guide/Bye-laws.
- xiii. "Probationer" means any person duly registered with the Institute as such as provided for in the Constitution and the institute Membership Guide/Bye-laws.
- xiv. "Technician" means any person duly registered with the Institute as such as provided for in the Constitution and the institute Membership Guide/Bye-laws.
- xv. "Student" means any person who is pursuing an approved course of study, which can lead to membership of the Institute and is duly registered with the Institute as such.
- xvi. "The Journal" means the official publication of the Institute known as "The Quantity Surveyor"
- xvii. "Election" means election or by-election into the National Executive Council or Chapter Senates or election into other elective offices.
- xviii. "The Register" means the book containing names and particulars of members of the Institute.

xx. "Chapter" means the Chapter(s) in any State of the Federation and the FCT (Federal Capital Territory), Abuja whose formation has been approved by the National Executive Council, and issued with a certificate of registration.

xxi. "The Quantity Surveying Profession" means the practice of the art of Engineering Science using the in-depth knowledge of the detailed components of construction elements to determine and ascertain the costs of construction, which includes any professional service or managerial work requiring the application of special knowledge of building and engineering construction, construction economics, applicable contractual laws, procurement strategies, financial management and communications in form of consultancy, investigation, valuation, research and teaching in recognized built environment institutions, planning, maintenance, supervision and management of construction works and coordination of allied professional inputs thereto of construction works, including quantification, tender analysis, costing, pricing, estimating, evaluation and procurement in the construction of any public or private development i.e. building, engineering and infrastructure projects.

l. "Corporate Financial Member" mean so a corporate member who is financially up to date.

- i. "Membership Election" means a letter from the Secretary-General of the Nigerian Institute of Quantity Surveyors confirming membership of the Institute.
- v. Words importing masculine gender only shall include the feminine gender. Words importing the singular number shall include the plural number and vice versa; and words importing persons shall include legal bodies.
- . "Budget" means a statement of the detailed projected or expected income and expenditure for the Institute over a period of a Council's financial year.
 - xxv- "A Council's Financial year" means the period of Twelve (12) months beginning ti of inauguration of the Council.
 - xxvi. "Special Emergency General Meeting" means an Emergency General Meeting convened as per clause 6.7.1 xxvii. "Biennial Election General Meeting (BEGM)" means the general meeting convened to elect members of the NEC.
- i. xxviii. "Biennial General Meeting (BGM)" means the general meeting held every Two (2) years just before the BEGM to transact the following Business: Receive the reports of NEC's tenure; Receive the President's Valedictory Speecho Dissolution of the National Executive Council.
- ii. "Membership Election" means a letter from the Secretary-General of the Nigerian Institute of Quantity Surveyors confirming membership of the Institute.
- iii. Words importing masculine gender only shall include the feminine gender. Words importing the singular number shall include the plural number and vice versa; and words importing persons shall include legal bodies.
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FIRST SCHEDULE

1.0 ELECTIONS AND TERMS OF OFFICERS

1.1 Generally

- i. The Biennial Elections Panel shall be responsible for the organization and conduct of the Biennial Elections as contained in this Constitution.
- ii. All officers shall be honorary and those to be elected shall be elected by secret ballot at the Institute's Biennial Election General Meeting (BEGM) and shall hold office for the period elected.
- iii. Corporate members seeking election into any office shall be active and current members of the Chapters and would so have been for a period of not less than Five (5) consecutive years prior to the election.
- iv. No Registered member shall serve on more than Two (2) Committees concurrently apart from the elected members of the National Executive Council in anyone term.
- V. No officer of the Council shall hold a particular office for more than Two (2) terms.
- vi. At the expiration of the period for submission of nomination forms, should there be any unfilled position advertised for in the National Executive Council, nominations for such position(s) shall be called for at the floor of the Biennial Election General Meeting (BEGM) immediately after announcing the received valid nominations and before the commencement of voting provided that no member whose nomination has earlier been invalidated or nullified or disqualified shall be entitled for nomination under the process.
- vii. Every candidate for election shall be entitled to nominate an agent from amongst financial members.

1.2 Biennial Election Panel (BEP)

12.1 There shall be a Biennial Election Panel. The panel shall be constituted by the National Executive Council at least Three (3) months before the date of the Biennial Election Meeting and stands dissolved after the Biennial Election Meeting.

1.2.2 Composition of Panel

- i. A Fellow of not less than Fifteen (15) years standing shall be the Chairman of the Panel.
- ii. Five (5) other members of not less than 10 years post MNIQS qualification, one member each from the geo-political zones of the country, excluding that from where the Chairman is from, provided that no member of the panel shall be a trustee or Past President of the Institute, propose or second any candidate in the election or be a candidate at the elections.

1.2.3 Duties

- i. To organize and carry out all the general arrangements and processes of conducting the election into the offices of the NEC of the Institute; and
- ii. To conduct the elections.

1.3 Closure of nomination

- i. Persons who intend to run for National Executive Council offices shall be Corporate Financial Members and shall have been nominated and seconded by Corporate Financial Members of the Institute and such nominations submitted to the Secretariat of the Institute at least Eight (8) weeks before the Biennial Election General Meeting.
- ii. All nominations shall be dropped into a Three (3) points sealed box conspicuously at the Secretariat. The box shall be opened by the Biennial Election Panel immediately after the expiration of the closing hour for receipt of nomination forms.

1.4 Circulation of Nomination/Voters List

- i. The list of persons nominated for each post in the National Executive Council and their profile and bio-data and manifesto submitted shall be compiled by the Biennial Elections Panel and these shall be circulated to Corporate Financial Members of the Institute with provision for voting at least Four (4) weeks before the Biennial Election General Meeting.
- ii. A voters' list comprising all eligible Corporate Financial Members (who shall be voted for) shall also be compiled and circulated to every Corporate Financial Members at least four (4) weeks before the Biennial Election General Meeting (BEGM).
- iii. A copy posted on the Institute's website, each Chapter's Secretariat notice board or published in the QS Connect shall be deemed to have been duly circulated in accordance with the provision of section 1.4 (i) & (ii).

1.5 Conduct of the Elections

- i. Upon the dissolution of the outgoing National Executive Council, the Biennial Elections Panel shall conduct the Election.
- 11. Voting at the Election General Meeting shall be by secret ballot, using ballot/nomination papers provided (either at the venue or prior) for the Biennial Election General Meeting and the Biennial Election Panel Chairman shall announce the result. Only Corporate Financial Members shall be eligible to vote and be voted for.
- iii. In case candidates secure same number of votes or there is no clear winner, the Biennial Election Panel shall order a revote among the eligible voters.

1.6 Final address/debate by Contestants on Manifestos

- i. Candidates shall draw up manifestos based on the Fundamental Objectives of the Institute pursuant to Section 2.0 of this Constitution
- ii. Prior to the commencement of voting, all the contestants for the offices of (a) Deputy President, (b) Vice President (c) Secretary-General, shall each address the voting audience and answer any questions by the audience on their manifestos.
- iii. The Chairman of the BEP shall be the Moderator of the session.

2.0 FORCE MAJEURE AND ELECTION RELATED GRIEVANCES

- i. In case of the suspension of any election due to inconclusive counting of votes or force majeure or any other unforeseen circumstances, the outgoing President shall swear in the Deputy President as the Acting President where applicable or the Deputy President shall automatically become the Acting President notwithstanding not being sworn into office.
- ii. The Acting President shall preside over an Interim NEC of Seven (7) members consisting of himself/herself, six (6) other members appointed by an Ad-hoc Committee of Trustees and Past Presidents, one each from the Six (6) geo-political zones of the country.
- iii. The tenure of the Interim NEC shall be Six (6) months, during which or at the end of which, it shall conduct an election in accordance with the provisions of this Constitution.
- iv. Provided that where a court injunction bars the conduct of an election of officers of the NEC at the General Election Meeting, and the court injunction is not discharged within the Six (6) months tenure of the Interim NEC, the Interim NEC, shall remain in office for an additional tenure of Six (6) months and shall continue in office and carry out the duties as mandated to it by the provisions of this constitution until the injunction is discharged.
- v. All issues/matters relating to election/electoral grievances shall be referred to the ADR committee.

3.0 INAUGURATION/INVESTITURE OF NATIONAL EXECUTIVE COUNCIL

- i. The new National Executive Council (NEC) shall be duly inaugurated with the announcement and invitation of all the elected Council members, to the NEC seat by the Chairman of the BEP after the conclusion of the election, and the delivery of the acceptance speech by the President.
- ii. This shall be done at the closing ceremony dinner of the BGM.

4.0 HAND OVER

The handing over exercise which entails change of signatories to the Institute's accounts in accordance with the provisions of this Constitution shall be effected at the first joint meeting between members of the outgoing NEC and the newly elected NEC not later than Four (4) weeks from the date of the inauguration.

5.0 INAUGURAL MEETING OF THE NATIONAL EXECUTIVE COUNCIL

The National Executive Council shall organize a Two (2) day NEC/NPC meeting to review and adopt its comprehensive program for the tenure in line with the institute Development strategy, not later than Twelve (12) weeks after inauguration.

6.0 ELECTIONEERING ACTIVITIES OF STAFF MEMBERS

Members of staff of the Institute are barred from direct or indirect involvement in the electioneering activities of members of the Institute.

SECOND SCHEDULE

STANDING ORDERS OF THE NIGERIAN INSTITUTE OF QUANTITY SURVEYORS

MEETINGS

1.0 PRESIDING OFFICER, NOTICES, QUORUM AND MINUTES

1.1 General Meetings

- i. The President shall be the Chairman at all meetings. In his absence, the Deputy President shall take the Chair. In the absence of both the President and the Deputy President, the Vice President shall preside. In the absence of these officers, the meeting shall stand adjourned and to be reconvened by the President.
- ii. The Chairmen shall formally declare the meeting open and closed.
- iii. Twenty Five (25) members, including Two (2) officers of the Institute shall form a quorum, and unless within Forty Five (45) minutes of the time of the meeting a quorum is the meeting shall stand adjourned till further notice.

1.2 Minutes of Meetings

- i. Minutes of previous meeting shall be sent to reach members not later than One (1) week before the next meeting.
- ii. Minutes of Annual General Meeting shall be sent to reach members not later than Four (4) weeks before the next Annual General Meeting.

2.0 ORDER OF BUSINESS

2.1 Adoption of previous minutes

- i. The minutes of the last meeting shall be read with a view to its confirmation/adoption.
- ii. After the Minutes shall have been read, the Chairman shall call for a motion for their adoption. Except there be any amendments thereto in which case the adoption of the Minutes shall follow the determination of those amendments.

2.2 The meeting shall be conducted in accordance with the agenda of the day.

2.3 Any business not disposed of at any meeting shall be put down on the agenda for the next meeting.

2.4 For the Chairman to close the meeting, a motion for adjournment shall be moved and duly supported.

3.0 RULES OF DEBATE

3.1 Members shall raise up their hands (or otherwise indicate their intention to speak) and when called upon shall speak upon a distinct motion or discussion. If more than one Member indicates their intention to speak, the Chairman shall determine who shall take precedence by calling on him to speak.

3.2 The Chairman shall have power to curtail and stop a speech he considers unreasonably long and/or irrelevant.

3.3 All speeches shall be addressed to the Chairman and any question to another member shall be put through the Chairman.

3.4 At any time during the course of a speech or debate, the Chairman may call for a motion without further debate and if seconded, shall be put forthwith, unless the Chairman rules otherwise.

4.0 MOTIONS

4.1 Motion with notice

Any Corporate Member desiring to bring a motion before the meeting must be a Corporate Financial Member and shall give notice of the same to the Secretary-General in writing signed by himself and his seconder who must also be a Corporate Financial Member, at least Two (2) months i.e. 60 days before the meeting at which it is to be moved.

4.2 Motion without notice

The following motions may be moved without notice at any meeting:

- i. For the adoption or otherwise of the minutes of the last meeting, or of the report of any Committee.
- ii. For reading or answering any correspondence or other documents and regarding any action to be taken by the meeting thereon.
- iii. For the precedence of any particular business.
- iv. For putting of motion to vote forthwith.
- v. For suggesting any business for consideration at a subsequent meeting.
- vi. For suspension of any part or parts of the Standing Order.
- Vii. For the adjournment of the meeting.
- viii. Point of order.

4.3 Motion without debates

The following motions may be moved at any meeting without debate:

- i. That the question be put to vote.
- ii. That the meeting proceeds to the next business.

4.4 Secondment of Motion

No motion or amendment proposed by any member shall be open to discussion at the meeting until it has been seconded by one other member.

4.5 Amendment of motion

When an amendment has been proposed to any motion, no second amendment shall be taken into consideration until the first amendment has been disposed of. If that amendment is carried, it shall then become the motion before the meeting upon which a further amendment may be made.

5.0 VOTING AT MEETINGS

5.1 Annual, Council, Emergency and Committee Meetings

- i. Voting at all other (Annual, Council, Emergency, and Committee) meetings shall be by show of hands, and the Chairman, shall announce the result.
- ii. In case of equality of votes, the Chairman shall have the right to order a re-vote or make a casting vote.

5.2 General

- i. These Standing Orders shall equally apply to Committee Meetings.
- ii. No alteration shall be made to these Standing Orders except as provided under the provisions of this Constitution.

THIRD SCHEDULE

DISCIPLINE OF MEMBERS, SETTLEMENT OF DISPUTES/GRIEVANCES

1.0 GENERALLY

- i. All Members of the institute shall be bound by the membership bye laws and Professional Code of Conduct of the institute as established elsewhere.
- ii. All cases/Any case of alleged professional misconduct of a member shall first be referred to the NEC, who shall refer the case to the Disciplinary Board.
- iii. A conflict or dispute resolution mechanism based on the intervention of the ADR Committee shall be employed in the first instance by any member in dealing with all disputes and in particular with election-related matters.
- iv. Generally, any Member who is aggrieved by the decision of the NEC or Institute, shall within Fourteen (14) days refer such grievance, through the Secretary General, to the ADR Committee as a condition precedent to members seeking redress in court.
- v. Any member who decides to sue the Institute in a Law Court without the prior mediation by the ADR Committee shall be suspended from the Institute till the determination of the said suit.

2.0 DISCIPLINARY BOARD

2.1 The Disciplinary Board shall comprise the following members, namely:

- 1. The Membership shall comprise a Chairman and not less than Two (2) and not more than Six (6) other members who shall be qualified members of the Institute; and who shall in the opinion of the National Executive Council be a person of unquestionable integrity and sound professional judgment.
- 2. The Chairman shall be a Past President of the Institute.
- 3. The quorum for the business of the Board shall be two-thirds of its membership in the event that a fraction occurs in determining the quorum, that fraction shall be a whole number.
- 4. The tenure of the Board is Three (3) years; membership of the board shall be limited to Two (2) tenures.

2.2 Duties

- i. The Board shall examine matters on discipline as may be referred to it by the National Executive Council; and ii. To make recommendations to the National Executive Council for disciplinary actions against erring members.

3.0 COMMITTEE OF PAST PRESIDENTS

- 3.1 The Committee of Past Presidents shall comprise all Past Presidents of the Institutes, which shall appoint a Chairman in accordance with its bye-laws, as approved by the National Executive Council.

32 Duties of Past Presidents

- i. To mediate and resolve disputes in accordance with the provisions of this Constitution.
- 4.0 ADR (Alternative Dispute Resolution) COMMITTEE
 - 4.1 Composition & Functions

The ADR (Alternative Dispute Resolution) Committee shall comprise of:

 - a. Three (3) Trustees to be nominated by the Board of Trustee; 2 Past Presidents, excluding Chairmen of Committees/Board, to be selected by the NEC; Two (2) members from the Fellows Forum, to be selected by NEC; One (1) non-Member of the institute (Non Quantity Surveyor) to be nominated by the NEC.
 - b. The Committee shall appoint their officers from amongst themselves at their first meeting.
 - c. The Tenure of the Committee shall be a single Term of Five (5) Years.
 - d. The Committee's duties shall be dispute resolution.
 - 4.2 Conduct of the Committee
 - 42.1 Any such dissatisfied member shall give notice to the Secretary-General who shall give notice of such dissatisfaction to the Committee.
 - 42.2 The Committee shall convene a meeting within Twenty One (21) days after the receipt of such notice.
 - 42.3 Whenever the Committee wishes to inquire into any matter or petition pertaining to, arising from, or connected with the affairs, interests, integrity, finances and financial management of the Institute, the Committee:
 - i. May, if they wish to co-opt, or delegate any member or members of the Institute and/or appoint a professional person and/or body to carry out such inquiry.
 - ii. May agree with such professional persons and/or body reasonable fees that would be paid by the Institute.
- iii. May in furtherance of such inquiry invite members concerned to attend such inquiry, request for information and/or documents from any member of the Institute, Management staff or other employee of the Institute.

It is an act of disrespect for any member of the Institute to fail, refuse, and/or neglect to accede to the Committee's request for information and/or documents in furtherance of such inquiry.

 - 42.5 Any Member who fails to comply with Clause 42.3 (iii) without any reasonable reason(s) will be subject to proceeding Disciplinary rule as provided in the bye law.
 - 42.6 The ADR (Alternative Dispute Resolution Committee) shall make their findings/recommendations to the Council and/or to the General House (if need be) at an extra Ordinary General Meeting or Special Emergency General Meeting called for that purpose.



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